PROJECT BLUEPRINT · VERSION 1.0

NRI Property Sale Checker

Business case, Indian law and compliance map, calculation engine, Oracle ARM + Docker architecture and launch plan for a no-LLM, simple-page product.

PREPARED BY

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DATE AND LAW POSITION

10 October 2026 · Income-tax Act, 2025 in force from 1 April 2026

STATUS

Draft for validation. Clear the Section 10 checklist before launch.

Information and planning document. Not tax, legal or FEMA advice.

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How this document is built

Law and FEMA positions below were cross-checked across several current secondary sources (practitioner portals and bank guides) because the official Act text was not available to me while writing. Anything that came from a single source, or where sources disagree, is tagged **VERIFY** and listed in Section 10. Treat that list as the pre-launch gate: no rule goes live until it is ticked against incometaxindia.gov.in, the e-filing portal or RBI.

1. Executive summary

The product. A simple website where an NRI who is selling property in India enters a few details and gets, in under two minutes: the capital gain, the tax, the TDS the buyer is likely to deduct, the gap between the two, the exemption options, how much can be sent abroad, and a document checklist. No LLM, no per-use cost. All logic is a rules file plus a calculation engine.

The pain it removes. A buyer paying an NRI seller must deduct TDS on the *whole sale price*, not on the gain, unless the seller holds a lower-deduction certificate. On a ₹1.2 crore sale with a ₹53.8 lakh gain, that means about ₹17.9 lakh withheld against roughly ₹7.7 lakh of actual tax (worked example in Section 4). The difference sits with the tax department until the NRI files a return and waits for a refund. Most sellers learn this at the registrar's office.

Why now. The Income-tax Act, 2025 replaced the 1961 Act from 1 April 2026. Section 195 became section 393(2), Forms 15CA/15CB became Forms 145/146, the lower-deduction route moved to section 395 (Form 128), and from 1 October 2026 resident individual and HUF buyers can report NRI-property TDS on PAN through Form 141 Schedule E (CBDT Notification 121/2026). Every old blog post, bank note and agent explanation is now out of date. Fresh, correct, date-stamped content wins search traffic here.

How it makes money

- **Free:** capital gain, tax estimate and TDS exposure headline. This is the hook and the SEO landing asset.
- **Paid report (test at US$12–15):** full computation, TDS-versus-tax gap, certificate application checklist, exemption scenarios, repatriation roadmap by source of funds, document list and a one-page letter to give the buyer.
- **Consultation upsell:** Form 146 (CA certificate), Form 128 application and ITR filing through the partner CA firm. This is where the real revenue is; the tool is the lead engine.
- **Free buyer-side checker:** “I am buying from an NRI: what do I deduct and how do I pay?” Buyers search more than sellers and each one is a warm referral to the seller.

Illustrative funnel (assumptions to be replaced by week-2 data)

Stage	Monthly assumption	Result
Visitors (SEO + community)	5,000	5,000
Complete the calculator	30%	1,500
Buy the report	6%	90 × US$12 = US$1,080
Ask for consultation	3% of calculator users	45 leads
Convert to engagement	20%	9 engagements (fee set with the CA firm)

> **Honest read on viability**
> Strong: real money at stake, urgent moment, formula-driven (zero AI cost), law just changed, and the founder's own GST/ITR/FEMA-NRI practice is the moat. Weak: traffic takes months via SEO, a single-sale purchase has low repeat value, and a wrong number damages trust fast. The mitigation is a versioned rules file, a test suite and a CA review of the rulebook before launch.

2. Market and customer

Who	What they need	Role in the product
NRI seller (US, UAE, UK, Canada, Australia, Singapore, Gulf)	Know the tax, the TDS, how to recover or reduce it, and how to move money abroad	Primary payer
Resident buyer purchasing from an NRI	Deduct the right TDS, deposit and report it correctly (Form 141 Sch. E or Form 144)	Free hook, referral source
Family member or POA holder in India	A checklist to run the sale for the NRI	Secondary payer
CAs, realtors, banks' NRI desks	A reliable calculator to send to clients	Phase 3 white-label

Search intents to own (all of them changed in 2026)

- “TDS on property purchase from NRI”, “section 393(2)”, “form 141 schedule E”, “form 144 code 1057”.
- “lower deduction certificate NRI property”, “form 128”, “section 395”.
- “NRI repatriation USD 1 million”, “NRO account sale proceeds”, “form 145 146 15CA 15CB”.
- “NRI capital gains tax property 2026”, “section 54EC NRI”, “NRI inherited property sale India”.
- Country pages: US, UAE, UK, Canada, Australia, Singapore, each with the local tax-credit angle.

Competitive position (my assessment; confirm with a week-1 audit)

Existing assets fall into four buckets: generic capital-gains calculators, bank NRI portals, CA blogs and agent explainers. The gap is a single flow that joins **tax + TDS + certificate + FEMA repatriation + documents** on the **2026 law**, with a visible “rules last updated” date. That is the differentiator. It is a depth and freshness moat, not a technology moat.

3. Legal and regulatory framework

Everything the tool computes or advises sits on these layers. The date of transfer decides which Act applies, so the calculator must ask for it first.

3.1 Which law applies, by date of transfer

Transfer date	Governing law	TDS provision and forms
Up to 31 Mar 2026	Income-tax Act, 1961	Section 195; Forms 15CA/15CB; lower deduction under s.197 (Form 13); TDS return Form 27Q
1 Apr 2026 onward	Income-tax Act, 2025 (Tax Year 2026-27) and Income-tax Rules, 2026	Section 393(2), Table Sl. 17, payment code 1057; Forms 145/146 for remittance; section 395 (Form 128) for lower/nil deduction; TDS return Form 144
1 Oct 2026 onward	Same, plus CBDT Notification 121/2026 dated 22 Sep 2026	Resident **individual or HUF** buyers: PAN-based payment and reporting via **Form 141, Schedule E**, no TAN needed, filed within 30 days from the end of the month of deduction. Companies, firms, LLPs and others: TAN-based, Form 144, code 1057

How the two Acts differ on TDS rates: they mostly do not. The new Act renumbers provisions and forms; the rates were left largely unchanged. Resident-seller TDS (1% over ₹50 lakh, old s.194-IA) now sits in section 393(1) and does **not** apply when the seller is non-resident.

3.2 Section map: 1961 Act to 2025 Act

Subject	1961 Act	2025 Act / Rules 2026	Confidence
TDS on payment to non-resident (property sale)	195	393(2), Sl. 17; code 1057	High
Lower or nil deduction certificate	197 / Form 13	395 / Form 128	High
Resident-seller property TDS (for contrast)	194-IA / Form 26QB	393(1), Sl. 3(i) / Form 141	High
TDS return for non-resident payments	Form 27Q	Form 144	High
Remittance declaration / CA certificate	Form 15CA / 15CB	Form 145 / 146	High
LTCG rate on property (12.5%)	112	197 (cited as 197(1)(b))	VERIFY clause
Exemption: house to house	54	82	High
Exemption: bonds (NHAI, REC, PFC, IRFC)	54EC	85	High
Exemption: other asset to house	54F	86	High
Stamp duty value deemed as consideration	50C	Section number not confirmed	VERIFY
Computation of capital gain	48	Section number not confirmed	VERIFY
Higher TDS where PAN is missing	206AA	Section number not confirmed	VERIFY
Capital Gains Account Scheme deposit	54(2), 54F(4)	Section number not confirmed	VERIFY

> **Engineering rule**
> The rules file stores each provision as *old section, new section, effective date, source URL, last-verified date*. The UI prints the correct citation for the transfer date. Never hard-code a section number in a template.

3.3 Is the seller really a non-resident?

The tool takes residential status as a **self-declaration** and links to the test; it does not decide status. The test (1961 Act s.6, carried into the 2025 Act; confirm the clause) in outline:

- Resident if in India for 182 days or more in the year; or 60 days in the year *and* 365 days in the preceding four years.

- For an Indian citizen or person of Indian origin **visiting** India, the 60-day limb is replaced by 182 days; where Indian-source income exceeds ₹15 lakh, the limb is 120 days (plus 365 in the preceding four years), which can make the person resident but not ordinarily resident.
- Citizens with Indian income above ₹15 lakh who are not liable to tax in any other country are **deemed resident**. Gulf-based NRIs should be warned about this one.
- If the answer is uncertain or the person is RNOR or resident, the tool stops and shows “speak to an adviser”. NRI-only logic must not be applied to a resident.

3.4 Capital gains on property: rules the engine encodes

Rule	Position (transfers on or after 23 Jul 2024)
Long-term vs short-term	Land or building held **more than 24 months** is long-term; 24 months or less is short-term. For inherited or gifted property the previous owner's holding period counts.
LTCG rate	**12.5% without indexation**, plus surcharge and 4% cess.
Indexation / 20% option	Not available to NRIs whatever the purchase date. The lower-of (12.5% or 20% indexed) option for property bought before 23 Jul 2024 is for **resident individuals and HUFs only**.
STCG	Added to total income and taxed at slab rates (non-resident individuals get no 87A rebate). **VERIFY** the Tax Year 2026-27 slabs from the Finance Act, 2026 before computing STCG in the tool.
Basic-exemption adjustment	The adjustment of unused basic exemption against LTCG is for residents only; do not apply it to NRIs.
Full value of consideration	Actual price, unless stamp duty value exceeds **110%** of the price, in which case stamp duty value is deemed the consideration (old s.50C). Stamp duty value on the date of agreement may be used if the price was fixed earlier and part paid by banking channel.
Deductions	Cost of acquisition (price + stamp duty + registration + brokerage), cost of improvement, and expenses wholly connected with the transfer. For property acquired before 1 Apr 2001, fair market value on 1 Apr 2001 may be taken as cost. For inheritance or gift, cost of the previous owner applies.
Surcharge	On total income: 10% above ₹50 lakh, 15% above ₹1 crore, and higher bands above ₹2 crore and ₹5 crore for other income, but the surcharge on this LTCG is **capped at 15%**. Marginal relief applies at each threshold.
Cess	4% on tax plus surcharge.

Effective LTCG rate on property (before marginal relief): 12.5% × (1 + surcharge) × 1.04

Total income / payment	Surcharge	Effective rate
Up to ₹50 lakh	Nil	13.00%
Above ₹50 lakh, up to ₹1 crore	10%	14.30%
Above ₹1 crore (LTCG surcharge capped)	15%	14.95%

3.5 Exemptions the engine can model

Provision (2025 / 1961)	Asset sold	Reinvest in	Cap and timing	Key conditions
s.82 / 54	Residential house (long-term)	Residential house in India	Exemption cap ₹10 crore of gain. Buy 1 year before or 2 years after; construct within 3 years	3-year lock-in on the new house. Gain up to ₹2 crore may be placed in two houses, once in a lifetime
s.86 / 54F	Any long-term asset except a house (plot, commercial)	Residential house in India	₹10 crore cap; 1 year before, 2 years after, 3 years to construct	Whole *net consideration* must be reinvested for full relief (proportionate otherwise). Seller must not own more than one other residential house on the transfer date
s.85 / 54EC	Land or building (long-term)	Specified bonds (NHAI, REC, PFC, IRFC)	₹50 lakh per financial year; invest within 6 months of transfer	5-year lock-in. NRIs are eligible

- If the gain is not reinvested before the due date of the return, it must be parked in the Capital Gains Account Scheme to preserve the claim (section number in the 2025 Act: VERIFY).
- Reinvestment plans can be used in the s.395 application so the certificate rate reflects the exemption.
- The tool models exemptions as *scenarios* (“if you put ₹X in 54EC bonds, tax falls by ₹Y”). It never assumes the user will comply with lock-ins.

3.6 TDS when an NRI sells property

Topic	Position
Who deducts	Any person paying the NRI: resident or non-resident buyer, individual, HUF, company, firm, LLP. No threshold; the 1% resident-seller regime does not apply.
On what amount	The **entire sale consideration**, not the gain, unless a section 395 certificate directs a lower rate. At the time of credit or payment, whichever is earlier.
Rate	LTCG: 12.5% + surcharge + 4% cess. STCG: rate in force for the seller (30% for an individual) + surcharge + cess. No PAN: a higher rate applies, minimum 20% (VERIFY clause).
Deposit and reporting	Resident individual or HUF buyer, from 1 Oct 2026: PAN-based, Form 141 Schedule E, within 30 days of the end of the month of deduction; one form per buyer; instalments need earlier payment and acknowledgement details. Other buyers: TAN, Form 144, code 1057, with the remittance code for the nature of gain.
Lower or nil deduction	Seller applies under s.395 on Form 128 to the Assessing Officer with the capital gain computation, agreement, cost proofs and reinvestment plan. The certificate fixes the rate the buyer must use. Apply **before** registration; allow weeks.
Late deduction or deposit	Interest (reported at 1% per month for non-deduction, 1.5% for non-deposit), late filing fee of ₹200 per day capped at the TDS, and possible penalty. VERIFY the 2025 Act sections and rates.
Seller's recovery path	Excess TDS is claimed as refund through the Indian ITR; Form 26AS/AIS must match the buyer's filing. If the buyer files late or under the wrong PAN, the credit does not appear.

> **Why this matters for the product**
> Buyers routinely over-deduct (whole price at 13–15%) or under-deduct (1% by mistake). Both create disputes at registration. A one-page “instruction to buyer” showing the correct section, rate, form and deadline is the single most useful artefact in the paid report.

3.7 After the sale: return, advance tax, foreign tax credit

- **Indian ITR is compulsory** for the NRI where TDS was deducted or tax is due; usually the ITR-2 style return (form number and due date under the 2025 Act: VERIFY). It is also how excess TDS is refunded.

- **Advance tax:** a large gain mid-year attracts interest if tax is not paid in the next instalment. The tool should show the date and amount.
- **Double tax treaties:** most India treaties let India tax gains on immovable property. The NRI claims credit in the country of residence (US foreign tax credit, UK relief, Canada, Australia, Singapore). Keep the Indian ITR acknowledgement and tax computation. A tax residency certificate and Form 10F (renumbered under the new Rules) are needed only to claim a treaty benefit in India.
- **UAE and other zero-tax countries:** no credit to claim; India's tax is the final tax.

3.8 FEMA: who can sell and how money leaves India

Topic	Position
Who the NRI can sell to	Residential or commercial property: to a resident Indian, or to an NRI or OCI. **Agricultural land, plantation property and farm house: only to a resident Indian citizen.** Version 1 of the tool refuses agricultural land and shows a warning.
Receipt of money	Through normal banking channels, credited to the NRO account. No cash.
Bought with foreign funds (inward remittance, NRE or FCNR(B))	Sale proceeds repatriable up to the foreign exchange originally paid in; for **residential** property this covers two properties (how the two-property limit is counted is described differently by different sources: VERIFY).
Bought while resident, bought with rupee/NRO funds, or inherited	Up to **USD 1 million per financial year** from the NRO account. The cap covers all NRO remittances combined (rent, interest, sale proceeds), after tax.
Above the limit	Needs RBI approval, applied through the authorised dealer bank.
Paperwork	Form 145 (earlier 15CA), Form 146 (earlier 15CB, certified by a Chartered Accountant), bank's remittance form and undertaking, sale deed, proof of tax paid. The bank has the last word.

Design consequence
The repatriation module asks one question: *how was the property originally paid for?* It then shows the applicable channel and a headroom bar against USD 1 million. It labels the output “guidance; your bank decides”.

3.9 Other laws that touch a sale and the tool itself

Law	Why it matters	Tool impact
Registration Act, 1908; Transfer of Property Act, 1882; state stamp laws	Sale deed must be registered; stamp duty and circle rate vary by state	Checklist; stamp duty value field for the 110% test
Power of Attorney practice	NRIs often sell through a POA signed abroad: notarised or apostilled/attested, then stamped in India. Courts have warned against sales by unregistered GPA documents	POA readiness checklist, country-wise attestation hint
RERA, 2016	Resale of under-construction units needs builder consent and transfer charges	Checklist item
Benami Transactions (Prohibition) Act, 1988	Title must be in the seller's own name	Warning in the checklist
Digital Personal Data Protection Act, 2023 and Rules; GDPR / UK GDPR for users there	Property and PAN details are personal data	Compute in memory; store no inputs; minimal order data
Consumer Protection Act, 2019; IT Act, 2000	Paid digital service; clear refund and disclaimer terms	Terms, refund policy, privacy notice
GST on the tool fee	Service to a customer abroad is normally an export of service (zero-rated, subject to conditions); domestic users attract 18%	Confirm treatment and LUT with the GST practice

Law	Why it matters	Tool impact
Professional rules (ICAI)	Form 146 must be certified by a Chartered Accountant; CAs and CA firms are bound by advertising limits	Tool is information only. Do not present anyone as a CA who is not. Agree co-branding with the CA firm

4. Calculation engine specification

4.1 Inputs

Input	Validation / note
Residential status (self-declared)	Must be Non-resident, else stop. Link to the test
Property type	Residential house or flat; plot; commercial. **Agricultural: out of scope, show FEMA warning**
Date of acquisition, date of transfer	Transfer date routes the law version (31 Mar 2026 / 1 Apr 2026 / 1 Oct 2026) and the 23 Jul 2024 rate boundary
Mode of acquisition	Purchase, inheritance, gift (previous owner's cost and holding period)
Sale consideration, stamp duty value	Rupees; SDV on the date of registration (or agreement)
Cost of acquisition, improvements, transfer expenses	Cost incl. stamp duty, registration, brokerage; optional FMV on 1 Apr 2001
Ownership share	Co-owners are taxed separately; calculate on the user's share
Other Indian income in the year	Needed for surcharge band and STCG slab
PAN available	Yes/No (affects TDS rate)
Reinvestment plan	House purchase/construction amount; 54EC bonds amount; none
Source of funds for original purchase	NRE/FCNR/inward remittance; NRO/rupee; acquired as resident; inherited
FY remittances already made, properties already repatriated	For headroom and two-property check

4.2 Algorithm

- **1.** Gate: non-resident? non-agricultural? If not, stop with the message.
- **2.** Select the law version by transfer date and load `rules/<version>.json`.
- **3.** Holding months = acquisition to transfer (previous owner's date for inheritance or gift). More than 24 = long-term, else short-term.
- **4.** Full value = price; if SDV > 110% of price, full value = SDV. Apply ownership share.
- **5.** Gain = full value − cost of acquisition − improvement − transfer expenses. No indexation for NRI.
- **6.** Tax: long-term at 12.5%; short-term at slab (from rules file, flagged until verified).
- **7.** Surcharge by total-income band with the 15% LTCG cap and marginal relief; add 4% cess.
- **8.** TDS exposure = consideration × rate × (1 + surcharge by payment band) × 1.04.
- **9.** Gap = TDS exposure − computed tax. Certificate-case TDS = computed tax (shown as % of consideration).
- **10.** Exemption scenarios: 54EC (cap ₹50 lakh), 54 and 54F as separate what-ifs; recompute tax.
- **11.** Repatriation: choose channel by source of funds; compute headroom against USD 1 million.
- **12.** Build the checklist and timeline (certificate, TDS deposit, return, advance tax, remittance forms).

4.3 Worked example (every figure reproducible)

An NRI based in the US sells a Hyderabad flat on a date after 1 Oct 2026. Bought in 2016. Individual resident buyer. No other Indian income. No exemption claimed.

Line	Amount (₹)
Sale consideration	1,20,00,000
Stamp duty value (within 110% of price = 1,32,00,000, so no deeming)	1,22,00,000
Less cost of acquisition (incl. stamp duty, registration)	(60,00,000)
Less cost of improvement	(5,00,000)
Less transfer expenses (brokerage)	(1,20,000)
Long-term capital gain	**53,80,000**
Tax at 12.5%	6,72,500
Surcharge 10% (income above ₹50 lakh; marginal relief not needed)	67,250
Cess 4% on 7,39,750	29,590
Tax liability	**7,69,340**
TDS without certificate: 1,20,00,000 × 12.5% × 1.15 × 1.04 = 14.95% (payment above ₹1 crore)	17,94,000
Excess TDS held until refund	**10,24,660**
TDS if a s.395 certificate is granted at actual tax (about 6.4% of consideration)	7,69,340

Scenario: ₹50 lakh into 54EC bonds. Taxable gain falls to ₹3,80,000. Tax = 47,500 + cess 1,900 = **₹49,400**, no surcharge. Saving ≈ ₹7,19,940. The tool must also show the 5-year lock-in and the 6-month deadline next to this number.

> **VERIFY before launch**
> The surcharge band for the TDS rate (assumed here to follow the payment amount) must be confirmed against the TDS rate chart for Tax Year 2026-27. The result is shown as an **estimate** in the UI.

4.4 Golden test cases (pytest)

#	Scenario	Expected behaviour
1	Example above	Gain 53,80,000; tax 7,69,340; TDS 17,94,000; excess 10,24,660
2	Held 18 months, price 90L, cost 80L, expenses 1L	Short-term gain 9,00,000 at slab; TDS about 30% of price plus surcharge and cess; show STCG verify flag
3	Price 80L, SDV 95L, cost 50L (95 > 88)	Full value 95L; gain 45L; tax 5,85,000 (no surcharge); TDS on 80L at 14.30% = 11,44,000
4	Price 40L, cost 60L	Long-term loss; tax nil; TDS on 40L at 13% = 5,20,000; recommend nil-deduction certificate
5	Transfer on 31 Mar 2026 vs 1 Apr 2026	Law version, section numbers and forms switch; rates identical
6	Agricultural land	Out of scope; FEMA warning; no calculation
7	Resident or RNOR self-declared	Stop with adviser message
8	NRO-route funds, FY remittances already USD 700k	Headroom USD 300k shown

5. Product design

5.1 User flow

- **1. Landing:** one sentence, one button. Shows “Rules last updated: <date>” and the law version.
- **2. Qualifier (4 questions):** status, property type, transfer date, how acquired. Routes to the right law or stops early.
- **3. Details:** the inputs in 4.1, one screen, running totals visible at the top on mobile.
- **4. Free result:** gain, tax estimate, TDS exposure, gap. The paid blocks are visible but locked.
- **5. Unlock:** price, what is inside, refund promise; checkout through a merchant of record.
- **6. Report and next step:** PDF download, plus “Get the certificate and return handled”.

5.2 Free vs paid

Free	Paid report
Capital gain and tax estimate	Line-by-line computation with section citations for the transfer date
TDS exposure and the gap	Certificate (s.395 / Form 128) checklist and timeline
Buyer-side TDS checker (route, form, code, deadline)	Exemption scenarios (54 / 54EC / 54F) with lock-ins
Repatriation headline	Repatriation roadmap by source of funds, forms 145/146
Rules-date stamp and disclaimers	Document checklist (India and country of residence), POA readiness, letter to the buyer, advance-tax and ITR dates

5.3 Trust features (these are the product)

- Rules last updated: date. Law version shown. Source link beside each rule.
- Assumptions panel on every result. “Estimate, not advice” is written once and clearly, not buried.
- No account needed. Nothing about the property is stored by default.
- A named human behind it: the founder's profile and the partner CA firm for certifications.

5.4 Pricing tests (not decisions)

Report: test US$9, US$12 and US$15 on traffic splits. Consultation: sell a fixed-scope “TDS certificate package”, not hours. Price in USD for non-Indian visitors and INR for Indian visitors.

6. Technical architecture (Oracle Always Free ARM + Docker)

Layer	Choice	Reason
Server	Oracle Cloud Ampere A1 (arm64), Ubuntu	Free; all images below are multi-arch
Edge	Cloudflare (DNS, CDN, WAF, rate limit)	Hides latency for US visitors; absorbs abuse
Reverse proxy	Caddy container	Automatic HTTPS, tiny config
App	Python 3.12 + FastAPI; static front end (Alpine.js or plain JS)	Calc engine as pure functions; fast to test
PDF	ReportLab (pure Python)	No system libraries, so no arm64 surprises
Storage	SQLite (orders only: email, order id, tier, time)	No property data stored
Payments	Merchant of record (Paddle or Lemon Squeezy) or Razorpay for INR	Handles overseas tax; check India payout support first (VERIFY)
Ops	Docker Compose, healthcheck, Uptime Kuma, nightly SQLite dump to object storage	Free tier can reclaim idle instances; keep backups off the box

docker-compose.yml (starting point)

```
services:
  app:
    build: ./app                # python:3.12-slim (multi-arch, runs on arm64)
    restart: unless-stopped
    env_file: .env              # payment webhook secret, report-token secret
    volumes: ["./data:/data"]   # SQLite orders only
    healthcheck:
      test: ["CMD", "python", "-c", "import urllib.request as u;u.urlopen('http://localhost:8000/healthz')"]
      interval: 30s
  caddy:
    image: caddy:2
    restart: unless-stopped
    ports: ["80:80", "443:443"]
    volumes: ["./Caddyfile:/etc/caddy/Caddyfile", "caddy_data:/data"]
    depends_on: [app]
volumes: { caddy_data: {} }
```

rules/2026-27.json (shape; values come from verified law)

```
{ "version": "2026-27", "effective_from": "2026-04-01", "last_verified": "YYYY-MM-DD",
  "ltcg_property": { "rate": 0.125, "indexation_nri": false, "section_new": "197", "section_old": "112" },
  "holding_months_long_term": 24,
  "sdv_tolerance": 1.10,
  "cess": 0.04,
  "surcharge": { "bands": [[5000000, 0.10], [10000000, 0.15]], "ltcg_cap": 0.15 },
  "tds": { "section_new": "393(2) Sl.17", "code": "1057", "no_pan_min_rate": 0.20,
           "pan_based_form_from": "2026-10-01", "form_individual_huf": "141-ScheduleE",
           "form_other": "144" },
  "exemptions": { "s82": {"cap": 100000000},
                  "s85": {"cap": 5000000, "months": 6, "lockin_years": 5},
                  "s86": {"cap": 100000000} },
  "fema": { "nro_annual_limit_usd": 1000000 },
  "verify_flags": ["stcg_slabs", "tds_surcharge_basis", "sdv_section_new", "no_pan_section_new"] }
```

Hardening checklist

- Open only ports 80/443 in the VCN security list and the host firewall; SSH by key only, restricted source.
- Validate all input with typed models; reject impossible dates and negative amounts.
- Report links are signed, expire in 24 hours, and the PDF is generated in memory.
- Verify the payment webhook signature; handle orders idempotently.
- Logs carry no inputs and no PAN. Cloudflare rate limits the calculate and report endpoints.
- Keep a test gate in the build: the golden cases in 4.4 must pass before any rules change deploys.

7. Go-to-market

7.1 Content map (first pages to publish)

Page	Intent
TDS on property purchase from an NRI, Tax Year 2026-27	Buyer search; embed the buyer-side checker
Form 141 Schedule E vs Form 144: which one applies	New from 1 Oct 2026; low competition
Lower deduction certificate (section 395, Form 128): step by step	Seller pain; leads to consultation
NRI capital gains on property 2026: 12.5% and surcharge	Calculator landing
Repatriating sale proceeds: the USD 1 million rule	High-intent NRI search
Section 54EC bonds for NRIs	Exemption what-if
Selling inherited property in India as an NRI	Large segment
Selling through a POA from abroad	Checklist traffic
Country pages: US, UAE, UK, Canada, Australia, Singapore	Local tax-credit angle each

7.2 Channels

- **Search:** the pages above, each with the calculator embedded and a visible “updated” date.
- **LinkedIn and short video under the personal brand:** pain-first story, short lines, one takeaway, in the same voice as hemanthnarra.in.
- **Communities:** NRI groups, finance forums and WhatsApp circles. Share the free tool and answer questions within each community's rules.
- **Referral partners:** Hyderabad and Andhra/Telangana realtors and CA offices; the buyer-side checker is their gift to clients.

7.3 Metrics for the first 30 days

Metric	Healthy signal
Calculator completion / visitors	25%+
Report purchase / completions	5%+
Consultation requests / completions	3%+
Wrong-number reports	Zero. Any report triggers a rules review

8. Risk register

Risk	Impact	Mitigation
Law changes or a rule is wrong	High: trust and liability	Versioned rules file, effective dates, verify flags, CA review of the rulebook, golden tests, “estimate” wording, monthly review
Seen as giving professional advice	High	Information tool; certifications only through the partner CA; never claim a title that is not held
Privacy	Medium	No storage of inputs; DPDP and GDPR-aware notice; minimal order data
Payment or tax on the tool fee	Medium	Merchant of record; GST position confirmed in writing
Source conflicts (FEMA two-property rule, STCG slabs)	Medium	Verify list in Section 10; show “guidance” until closed
Oracle instance reclaimed or down	Medium	Off-box backups, snapshots, a static fallback, option to move to a paid shape

Risk	Impact	Mitigation
SEO is slow	Medium	Community and LinkedIn in parallel; buyer-side checker as hook
Copycats	Low-Medium	Depth, freshness, human network, brand
ICAI advertising limits if the CA firm is co-branded	Medium	Keep promotion on the personal-brand tool; agree wording with the firm

9. Roadmap

When	What	Done when
Days 1–3	Close every VERIFY item; freeze rules/2026-27.json; draft disclaimer and terms	Section 10 fully ticked
Days 4–10	Build calculator, results page, buyer-side checker, golden tests; deploy on Oracle with Caddy	All 8 test cases pass in CI
Days 11–14	Payments, PDF report, 5 SEO pages, soft launch to 20 NRIs and 5 CAs	First paid report
Month 2	STCG slabs, state stamp-duty links, consultation booking, email follow-ups	Funnel numbers in 7.3
Month 3+	White-label for CAs and realtors; country-specific credit guides; rental-income tools	Repeat revenue

10. Pre-launch verification checklist

This is the gate. Tick each item against the official source and record the date in the rules file. The research behind this blueprint used practitioner portals and bank guides; none of those is the law.

#	Item	Official place to check	Tick
1	Section 393(2) Sl.17, code 1057, rate in force for LTCG/STCG on property	Income-tax Act, 2025 and Finance Act, 2026 (incometaxindia.gov.in)	☐
2	CBDT Notification 121/2026 (22 Sep 2026): Form 141 Schedule E, scope, due date	CBDT notifications page; e-filing portal forms	☐
3	Forms 128, 141, 144, 145, 146 and their instructions	e-filing portal, “Forms as per Income-tax Act, 2025”	☐
4	Section 395 process, validity and timelines of a lower-deduction certificate	Rules 2026; TRACES / e-filing	☐
5	LTCG clause (cited as 197(1)(b)) and NRI exclusion from the indexation option	Act text	☐
6	Section numbers for the 50C equivalent, mode of computation (old 48), CGAS, no-PAN rate	Concordance table on the e-filing portal	☐
7	STCG slabs and non-resident rebate position for Tax Year 2026-27	Finance Act, 2026	☐
8	Surcharge bands, the LTCG 15% cap, and whether TDS surcharge follows the payment amount	Finance Act, 2026; TDS rate chart	☐
9	Interest, late fee and penalty sections under the 2025 Act	Act text	☐
10	Residential-status clauses and the ₹15 lakh / 120-day rules	Act text	☐
11	FEMA: how the two-property limit is counted; USD 1 million NRO channel; forms and undertaking	RBI Master Direction on remittance of assets; FEMA immovable-property regulations (rbi.org.in)	☐
12	ITR form number and due date for the NRI; DPDP Rules commencement for the tool	Income-tax Rules, 2026; MeitY	☐
13	GST treatment of the report fee for overseas buyers (LUT); payout support to India for the payment provider	GST portal / own GST practice; provider's terms	☐
14	ICAI rules for any CA-firm co-branding	ICAI Code of Ethics	☐

Appendix A. Claude Code master prompt

Paste into Claude Code in an empty repository. Fill in the rules file after Section 10 is done.

```
Build "NRI Property Sale Checker", a no-LLM web app to run on arm64 Linux in Docker.

STACK: Python 3.12, FastAPI, pydantic, pytest, ReportLab (PDF), SQLite, plain HTML/JS front end
(mobile-first, dark charcoal + gold theme), Caddy as reverse proxy. docker-compose with services
app and caddy. Base image python:3.12-slim. Healthcheck at /healthz. No external API calls.

STRUCTURE: app/engine (pure functions), app/rules/2026-27.json, app/api, app/pdf, app/web, tests/.

ENGINE: implement the 12-step algorithm as pure functions that read ALL rates, bands, caps, dates
and section citations from the rules JSON. No law constants in code.
 1 gate: non-resident and non-agricultural, else return a stop message
 2 select law version by transfer date (before 2026-04-01 uses 1961 citations; after, 2025)
 3 holding months; > 24 = long term; inherited or gifted uses previous owner's date
 4 full value = price; if stamp_duty_value > 1.10 * price then full value = stamp_duty_value
 5 gain = full value - cost - improvement - transfer expenses (no indexation)
 6 tax: long term 12.5%; short term from slab table in rules (flag verify)
 7 surcharge by band, LTCG surcharge capped at 15%, marginal relief, then 4% cess
 8 TDS exposure = consideration * rate * (1 + surcharge by payment band) * 1.04
 9 gap = TDS exposure - tax; certificate-case effective % of consideration
10 exemption what-ifs: 54EC (cap 50 lakh, 6 months, 5-year lock-in), 54, 54F
11 repatriation channel by source of funds; headroom vs USD 1,000,000
12 checklist + timeline (certificate, TDS via Form 141 Sch.E or Form 144, ITR, advance tax)

API: POST /api/calc (nothing stored), POST /api/report (signed 24h link, PDF generated in
memory), GET /api/rules-meta (version, last_verified), POST /webhooks/payment (signature check,
idempotent), GET /healthz.

UI: landing, 4-question qualifier, details form, free result with locked blocks, checkout,
report page. Show "Rules last updated" and law version everywhere. Assumptions panel on every
result. Disclaimer: estimate for information, not tax, legal or FEMA advice.

PRIVACY: never persist property inputs or PAN; logs contain no inputs; orders table holds
email, order id, tier, timestamp only.

TESTS: tests/test_golden.py, make these pass first:
 case1 price 12000000 sdv 12200000 cost 6000000 improv 500000 exp 120000
       -> gain 5380000, tax 769340, tds 1794000, excess 1024660
 case3 price 8000000 sdv 9500000 cost 5000000 -> full value 9500000, gain 4500000,
       tax 585000, tds 1144000
 case4 price 4000000 cost 6000000 -> long-term loss, tax 0, tds 520000
 54EC what-if on case1 with 5000000 invested -> tax 49400
 Also: agricultural land returns stop; resident declaration returns stop; 31 Mar 2026 vs
 1 Apr 2026 changes citations only.

DELIVER: Dockerfile, docker-compose.yml, Caddyfile, README with Oracle ARM deployment steps,
Makefile (test, run, build).
```

Appendix B. Glossary

Term	Meaning
NRO / NRE / FCNR(B)	Non-resident ordinary (rupee, Indian income); non-resident external (foreign income, freely repatriable); foreign currency non-resident (bank) deposit
SDV	Stamp duty value (circle or guideline value) assessed by the state authority
LTCG / STCG	Long-term / short-term capital gain
CGAS	Capital Gains Account Scheme, 1988: a bank deposit to park unspent gain
AD bank	Authorised dealer bank allowed to process foreign-exchange remittances
PAN / TAN	Permanent / tax deduction account number
OCI / PIO	Overseas Citizen of India / Person of Indian Origin
RNOR	Resident but not ordinarily resident
MoR	Merchant of record: the payment company that sells to the customer and handles overseas sales tax

Appendix C. Sources consulted (secondary; for cross-checking only)

- TDSMAN, How to Pay TDS on Purchase of Property from NRI, TY 2026-27 (updated 3 Oct 2026): blog.tdsman.com/2026/09/how-to-pay-tds-on-purchase-of-property-from-nri-ty-2026-27/
- TDSMAN, TDS on Payments to Non-Residents, Section 393(2): blog.tdsman.com/2026/07/tds-on-payments-to-non-residents-section-3932-section-195/
- EximPe, Section 195 TDS is now Section 393(2): eximpe-blog.ghost.io/section-195-tds-non-residents-section-393/
- Krystal7, TDS on Payments to Non Residents under Section 393: krystal7.com/insights/tds-on-payments-to-non-residents
- TaxClue, Capital gains exemption under ITA 2025, sections 82, 85, 86: taxclue.in/blog/capital-gains-exemption-section-54-54f-54ec-ita-2025
- CA Jatin Karda, NRI Property Tax Part 2 (section 197 mapping): cajatinkarda.in/articles/nri-property-tax-part-2
- Shahi and Co, TDS under the new Act, section 393: shahiandco.in/blog-tds-new-income-tax-act-2025.html
- MyITReturn, Income-tax Act 2025 new forms guide (Forms 145/146): help.myitreturn.com
- ICICI Bank, NRIs selling real estate in India, repatriation rules: icici.bank.in/nri-banking/nriedge/nri-articles/nris-selling-real-estate-in-india
- Guides on the 110% stamp-duty safe harbour and 12.5% LTCG: taxgarden.in, taxclear.in, togetherbuying.in

Official sources to use for the final check
incometaxindia.gov.in (Act, Rules, notifications) · incometax.gov.in e-filing portal (forms, concordance) · rbi.org.in (Master Directions, FEMA regulations) · egazette.gov.in (Finance Act, 2026) · icai.org (Code of Ethics).